

22STCV33483 22STCV33483

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-02

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Case Number: 22STCV33483 Hearing Date: September 2, 2026 Dept: 512

HEARING DATE: Weds., September 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Jones v. County of Los Angeles, et al. COMPL. FILED: 10-13-22

CASE NUMBER: 22STCV33483

NOTICE: OK

PROCEEDINGS: MOTION FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff Christine Jones

RESP. PARTY: Defendant County of Los Angeles

MOTION FOR ATTORNEY'S FEES

(Gov. Code, § 12965(b); Lab. Code, § 1102.5)

TENTATIVE RULING:

Plaintiff Christine Jones's Motion for Statutory Attorney's Fees is GRANTED in the reduced total amount of \$1,441,242.00.

Moving party is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on August 19, 2026 [] Late [] None

REPLY: Filed on August 26, 2026 [] Late [] None

ANALYSIS:

I. Background

On October 13, 2022, Plaintiff Christine Jones ("Plaintiff") filed the instant action against County of Los Angeles ("LA County") and Los Angeles County Sheriff's Department ("LA County Sheriff") ("Defendants") and Does 1-50, alleging causes of action for Retaliation in Violation of Labor Code section 1102.5; Gender Discrimination in Violation of Government Code Section 12940, et seq.; and Intentional Infliction of Emotional Distress ("IIED").

On April 3, 2026, following a jury trial, judgment was entered in favor of Plaintiff and against Defendants in the amount of \$2,697,000, and Plaintiff was deemed the prevailing party. (See 4/3/26 Judgment, p. 5.)

On June 2, 2026, Plaintiff filed the instant Motion for Statutory Attorneys' Fees (the "Motion").

On August 19, 2026, Defendants filed an Opposition.

On August 26, 2026, Plaintiff filed a Reply.

II. Evidentiary Objections

In conjunction with the Reply, Plaintiff objects to ¶ 51, ¶¶ 53-62, and ¶¶ 63-108 of the Knapton declaration accompanying the Opposition as well as Exhibits 3-6. (See Evid. Objections, pp. 1-5.) Plaintiff objects to all the paragraphs and exhibits on the grounds that they lack foundation; Plaintiff also objects that ¶ 51 is an improper legal conclusion, and ¶¶ 63-108 and Exhibit 6 lack personal knowledge. (See Evid. Objections, pp. 1-5.)

The Court **OVERRULES** the objections.

III. Legal Standard

Labor Code section 1102.5, subdivision (j) states: "The court is authorized to award reasonable attorney's fees to a plaintiff who brings a successful action for a violation of these provisions."

Government Code section 12965, subdivision (b) states, in pertinent part: "In civil actions brought under this section, the court, in its discretion, may award to the prevailing party, including the department, reasonable attorney's fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when

brought, or the plaintiff continued to litigate after it clearly became so.”

“Government Code section 12965, subdivision (b), governs cost awards in FEHA actions, allowing trial courts discretion in awards of both attorney fees and costs to prevailing FEHA parties.” (Williams v. Chino Valley Independent Fire Dist. (2015) 61 Cal.4th 97, 99.)

The Court’s objective is to award attorneys’ fee at the fair market value based on the particular action. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “ ‘[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.’ ” (Ketchum, supra, 24 Cal.4th at p. 1134.) The lodestar method is based on several factors, as relevant to each particular case: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Id., at p. 1132.) “The ‘experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.’ ” (Ibid.) A negative multiplier is appropriate when duplicative work is performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 834.)

IV. Discussion

A. Prevailing Party

Labor Code section 1102.5, subdivision (j) states: “The court is authorized to award reasonable attorney’s fees to a plaintiff who brings a successful action for a violation of these provisions.”

“Government Code section 12965, subdivision (b), governs cost awards in FEHA actions, allowing trial courts discretion in awards of both attorney fees and costs to prevailing FEHA parties.” (Williams, supra, 61 Cal.4th at p. 99.)

Government Code section 12965, subdivision (b) states, in pertinent part: “In civil actions brought under this section, the court, in its discretion, may award to the prevailing party, including the department, reasonable attorney’s fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so.”

Here, it is undisputed that judgment was entered in favor of Plaintiff and against Defendants, and as such Plaintiff is the prevailing party. Thus, the Court has discretion to award Plaintiff attorney fees. (See Lab. Code, § 1102.5; Gov. Code, § 12965; Williams, supra, 61 Cal.4th at p. 99.)

B. Amount of Fees

Parties’ Arguments

Plaintiff moves for an award of \$2,938,556.16 in attorney’s fees, reflecting a lodestar calculation of \$1,679,174.95 multiplied by a 1.75 multiplier. (Notice of Motion.)

In Opposition, Defendants contend the numbers listed in the Motion do not match the numbers submitted in the supporting papers. (Opp., pp. 2-3, 7.) Specifically, Defendants contend the hours incurred by the appellate firm Esner Boyer Chang are unsupported, and the Motion does not explain why these attorneys were retained. (Opp., pp. 3-4, 7.) Defendants also

contend that the Motion fails to provide billing records or time incurred as to attorney Erskine. (Opp., pp. 4, 7.) Defendants also challenge the hourly rate incurred by Plaintiff's counsel and assert that the noncontingent hourly market rates actually paid in Los Angeles is "\$916 per hour for senior partners, \$554 per hour for less senior partners, and \$350 for associates" and submit a declaration in support of their contention. (Opp., pp. 4, 8-9, Knaption Decl.) Additionally, Defendants request the Court base the attorneys' fee award solely on Plaintiff's successful causes of action and deny an award of a multiplier. (Opp., pp. 9-13.) Finally, Defendants request the Court apply a negative multiplier as Plaintiff over litigated the action. (Opp., p. 13.)

In Reply, Plaintiff contends Defendants fail to effectively contest the majority of Plaintiff's counsel's fees, including the supporting declarations by DeRubertis and George as well as all counsel's declarations filed in support of the Motion. (Reply, pp. 1-2.) Plaintiff challenges the reliability and credibility of the declaration submitted in support of the Opposition and contends most of Defendants' assertions regarding decreasing the attorney's fees award is speculative. (Reply, pp. 2-4.) Plaintiff states Erskine's work was necessary and reasonable, and Esner Chang and Boyer's were necessary and reasonable as well as demonstrated through Osten's declaration wherein Osten states they assisted in the opposition to non-suit in the middle of trial. (Reply, p. 3.) Plaintiff emphasizes that Plaintiff's counsel's hourly rates are reasonable and adequately supported and, moreover, Defendants' evidence in support of the Opposition relies on unidentified, anonymous data and is thus unreliable. (Reply, pp. 4-5.) Plaintiff states Plaintiff's counsel's hours are neither excessive nor improperly billed, and Defendants' claim that Plaintiff only succeeded on half of her claims is "grossly misleading and simply wrong. (Reply, pp. 6-9.) Plaintiff emphasizes arguments raised in the Motion regarding the application of a multiplier. (Reply, pp. 9-10.)

Analysis

Here, Plaintiff submits declarations from attorneys Aaron Osten, Molly McKibben, Mark Quigley, and Francisco Yeverino to support the Motion. (Motion, Decls.) Plaintiff also submits a declaration from Plaintiff, stating that Plaintiff paid Erskine \$67,932.95 in attorney's fees and can attach checks totaling this amount. (Motion, Jones Decl.)

Plaintiff states Plaintiff's counsel, in total, expended more than 2,138 hours of attorney time and "hundreds of hours of uncompensated paralegal time litigating this case and dozens more preparing post-trial motions and documents, including this fee application. None of the hundreds of hours spent by paralegals, including Sugheiy Gonzalez, the lead paralegal on the case, and by Sofia Rivera, the Legal Secretary assigned to the case, have been sought in this application." (Motion, p. 8.)

Plaintiff further states that, "[b]ased on the experience of counsel as reflected in appropriate market rates, the hourly rates requested are as follows: Mark Quigley at \$1,100/hr.; Aaron Osten at \$850.00/hr., Molly McKibben at \$850.00/hr., and Francisco Yeverino at \$400/hr." (Motion, p. 9.) "Mr. Osten, Mr. Quigley, and Ms. McKibben are all highly experienced trial lawyers and their respective hourly rate is reasonable and well within the market rate for attorneys with their level of experience and skill." (Motion, p. 9, Osten Decl., ¶¶ 1-46; Quigley Decl., ¶¶ 2-12, 17-18, Exh. 1; McKibben Decl., ¶¶ 1-6, 8-10, Exh. 1.) Yeverino is "growing as an established trial lawyer, and his hourly rate is also well within the market rate for attorneys with his experience and skill." (Motion, p. 9, Yeverino Decl., ¶¶ 1-5, 8-11, Exh. 1, Quigley Decl., Osten Decl.)

In total, Plaintiff states and provides evidence that Quigley incurred 27.4 hours at \$1,100 per hour; Osten incurred 1,468.41 hours at \$850.00 per hour; McKibben incurred 164.51 hours at \$850.00 per hour; Chang incurred 6.8 hours at \$700.00 per hour; Yeverino incurred 470.9 hours at \$400.00 per hour; and Erskine incurred \$67,932.95 in this action. (See Motion, p. 10, Osten Decl., Quigley Decl., McKibben Decl., Yeverino Decl.)

Plaintiff also provides itemized billing records for Quigley, Osten, McKibben, and Yeverino that reflect how their respective time was incurred from 2022 until the instant Motion. For instance, Quigley's hours are comprised of tasks such as meetings with counsel on the action; conferring with counsel regarding discovery, trial continuance, mediation, and trial strategy; and drafting/reviewing/editing attorney fee declaration. (Motion, Quigley Decl., Exh. 1.) McKibben's hours are comprised of tasks such as exchanging emails, reviewing medical documents, reviewing witness lists, preparing trial schedule, traveling to and meeting with doctors, meeting with witnesses, reading and annotating depositions, reviewing motions in limine, preparing voir dire questions, engaging in trial preparation, and participating in jury trial. (Motion, McKibben Decl., Exh. 1.)

Yeverino's hours are comprised of tasks such as reviewing case documents, preparing and reviewing discovery items, meeting with counsel, exchanging emails, conducting research and case analyses, reviewing case files, reviewing/analyzing motions, participating in trial meetings, assisting in trial preparation, attending the final status conference, attending jury trial, reviewing trial proceedings, and editing/working on the instant Motion and accompanying declaration. (Motion, Yeverino Decl., Exh. 1.)

Further, Osten's hours are comprised of tasks such as drafting pleadings, attending case management conferences, corresponding with counsel and client, preparing discovery requests, drafting and editing stipulations, reviewing discovery responses and supplemental discovery responses, engaging in meet and confer efforts, reviewing medical records, conducting legal research, preparing for deposition, reviewing the case file, preparing for trial, editing/finalizing motions in limine, editing joint witness list, attending court hearings, and participating in Jury Trial. (Motion, Osten Decl., Exh. 1.)

The Court finds that Osten's billing statements reflect multiple blocked billing entries. To illustrate, on 5/8/2024, Osten billed 4.45 hours for "Telephone call with Katy Erskine; send and receive e-mails with Erskine, review case file/documents, telephone call with client Jones." Another example, Osten billed 6.60 hours to review "Defendant's Production [COLA 01491 – 01541]; organize/index docs; call with Christine Jones; Call with Quigley." Not only this is block billing, but it also includes clerical/administrative tasks. On 10/11/2024, 8.20 hours is billed for "Plaintiff's deposition Prep at office; finalize RFP and SROG's to be propounded on County." Considering the multiple block billing entries throughout the entire billing statement by Osten, the Court reduces the billing hours for Osten to 1,268 hours.

Furthermore, the Court finds that the \$67,932.95 alleged to have been incurred by Erskine is not adequately supported and thus not reasonable. While the Court acknowledges Plaintiff submits a declaration from Jones stating this amount was paid by Plaintiff to Erskine and provides copies of said checks (Motion, Jones Decl.; Reply Jones Decl., Exh. 1), the Court does not find there are any billing hours or records filed to support an award in this amount requested.

Given the length of the action, the amount of motion practice involved in the action, the nature of the action, that a Jury Trial was held in the action, and the contingent nature of the fee award, the Court finds rest of the time and hours incurred by Plaintiff's counsel to be reasonable.

Further, the Court denies Plaintiff's request for a multiplier. (Motion, pp. 2, 11-15.) The Court finds there is no basis to award a multiplier because the time and skill of counsel, as well as the contingent nature of the representation, are compensated with fees. Also, nothing before the Court suggests the underlying case required extraordinary legal skill and/or required counsel to bear unnecessary risk.

Finally, upon review of all the briefing and submitted evidence, the Court finds the hourly rates sought by Plaintiff to be reasonable and adequately supported. (See Motion, Osten Decl., Quigley Decl., McKibben Decl., Yeverino Decl.)

Thus, the Motion is GRANTED in the reduced amount of \$1,441,242.00, reflecting no multiplier, reduction of \$67,932.95 for the insufficiently supported Erskine hours, and reduction of \$170,000 in Osten's hours.

To the extent Defendants request the Court reduce the attorney's fees award by the unsuccessful causes of action, the Court does not find this argument persuasive in the instant circumstances. The Court finds Plaintiff prevailed on the main causes of action raised in the operative complaint for trial, and the unsuccessful IIED cause of action was related to and/or overlapped in many respects with the successful causes of action, such as in the requisite facts, evidence, and/or relief.

Insofar as Defendants challenge the \$4,760 award to Esner Chang Boyer and Murphy, the Court finds this amount is adequately supported by the Osten declaration, wherein Osten states Esner Chang Boyer and Murphy are appellate attorneys who worked 6.8 hours in connection with assisting Plaintiff's counsel in opposing the Motion for Non-Suit filed by the County during trial. (See Motion, Osten Decl., pp. 14-15, Exh. 2.)

V. Conclusion & Order

For the foregoing reasons, Plaintiff Christine Jones's Motion for Statutory Attorney's Fees is GRANTED in the reduced total amount of \$1,441,242.00.

Moving party is ordered to give notice.

HEARING DATE: Weds., September 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Jones

v. County of Los Angeles, et al. COMPL.

FILED: 10-13-22

CASE NUMBER: 22STCV33483

NOTICE:

OK

PROCEEDINGS: MOTION

TO STRIKE OR TAX COSTS

MOVING PARTY: Defendant

County of Los Angeles

RESP. PARTY: Plaintiff Christine Jones

MOTION TO STRIKE OR TAX COSTS

(CRC, rule 3.1700)

TENTATIVE RULING:

Defendant County of Los Angeles's Motion

to Strike, or Alternatively, Tax Costs is GRANTED IN PART AND DENIED IN PART.

Moving party

is ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on June 30, 2026 [] Late [] None

REPLY: Filed on July
7, 2026 [] Late [] None

ANALYSIS:

I.

Background

On October 13, 2022, Plaintiff Christine Jones ("Plaintiff") filed the instant action against County of Los Angeles ("LA County") and Los Angeles County Sheriff's Department ("LA County Sheriff") ("Defendants") and Does 1-50, alleging causes of action for Retaliation in Violation of Labor Code section 1102.5; Gender Discrimination in Violation of Government Code Section 12940, et seq.; and Intentional Infliction of Emotional Distress ("IIED").

On April 3, 2026, following a jury trial, judgment was entered in favor of Plaintiff and against Defendants in the amount of \$2,697,000, and Plaintiff was deemed the prevailing party. (See 4/3/26 Judgment, p. 5.)

On April 20, 2026, Plaintiff filed a Costs Memorandum ("Costs Memo") seeking a total of \$87,083.81 in costs.

On May 6, 2026, LA County filed the instant Motion to Strike, or Alternatively, Tax Costs (the "Motion").

On June 30,
2026, Plaintiff filed an Opposition.

On July 7,
2026, LA County filed a Reply.

On July 10,
2026, the Court continued the hearing on the Motion to September 2, 2026.

II.
Legal
Standard

Code of Civil Procedure section 1032
states that "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) A "prevailing party" includes: "[T]he party with a net monetary recovery." (Code Civ. Proc., § 1032, subd. (a)(4).)

Code of Civil Procedure section 1033.5
states the following items are allowable costs under section 1032: "(3) Taking, video recording, and transcribing necessary depositions... (4) Service of Process by a public officer, registered process server, or other means... (5) Expenses of attachment including keeper fees... (7) Ordinary witness fees pursuant to Section 68093 of the Government Code... (8) Fees of expert witness ordered by the court... (9) Transcripts of court proceedings ordered by the court... (11) Court reporter fees as established by statute.... (13) Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.." (Code Civ. Proc., § 1033.5.)

"An award of costs shall be subject to
the following: (1) Costs are allowable if incurred, whether or not paid.
(2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.
(3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section and items assessed upon application may be allowed or

denied in the court's discretion." (Code Civ. Proc., § 1033.5, subd. (c).)

"The FEHA statute expressly directs the use of a different standard than the general costs statute: Costs that would be awarded as a matter of right to the prevailing party under Code of Civil Procedure section 1032(b) are instead awarded in the discretion of the trial court under Government Code section 12965(b). By making a cost award discretionary rather than mandatory, Government Code section 12965(b) expressly excepts FEHA actions from Code of Civil Procedure section 1032(b)'s mandate for a cost award to the prevailing party." (Williams v. Chino Valley Independent Fire Dist. (2015) 61 Cal.4th 97, 105.)

"Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700, subd. (b)(2).)

" 'If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.' " (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131; see also Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-74 [" 'Section 1033.5, enacted in 1986, codified existing case law and set forth the items of costs which may or may not be recoverable in a civil action. [Citation.]" ' [Citation.] An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.' [Citation.] ... If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs"].)

"[T]he mere filing of a motion to tax costs may be a 'proper objection' to an item, the necessity of which appears

doubtful, or which does not appear to be proper on its face. [Citation]
However, '[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].' [Citations]" (Anderson, supra, 72 Cal.App.4th at p. 131.)

"The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable. [Citation]" (Ibid.)

III.

Discussion

LA County

contends the Costs Memo was untimely filed and served. Further, LA County moves to strike or alternatively tax the following costs: Item 4 – Deposition Costs; Item 5 – Service of Process; Item 6 – Attachment Expenses; Item 8 – Witness Fees; Item 9 – Court-ordered Transcripts; Item 11 – Court Reporter Fees as Established by Statute; Item 13 – Models, Enlargements, and Photocopies of Exhibits. (Motion, pp. 1-9.)

A. Entitlement to Costs

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., §§ 1032, subd. (a)(4); 1033.5, subd. (a).) However, "Government Code section 12965, subdivision (b), governs cost awards in FEHA actions, allowing trial courts discretion in awards of both attorney fees and costs to prevailing FEHA parties." (Williams, supra, 61 Cal.4th at p. 99.)

Government Code section 12965, subdivision (b) states, in pertinent part: "In civil actions brought under this section, the court, in its discretion, may award to the prevailing party, including the department, reasonable attorney's fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became

so.”

Here, it is undisputed that judgment was entered in favor of Plaintiff and against Defendants, and as such Plaintiff is the prevailing party. Thus, the Court has discretion to award Plaintiff costs. (See Gov. Code, § 12965; Williams, *supra*, 61 Cal.4th at p. 99.)

B. Timeliness

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a)(1).)

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4).” (Cal. Rules of Court, rule 3.1700, subd. (b)(1).)

Here, the Costs Memo was filed and served on April 20, 2026. Judgment was entered and served on April 3, 2026; thus, the deadline to file a Costs Memo was Saturday, April 18, 2026. Since the deadline to file a costs memorandum fell on a Saturday, the deadline becomes extended to Monday, April 20, 2026 per Code of Civil Procedure section 12a. (See Code Civ. Proc., § 12a [“If the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday. For purposes of this section, ‘holiday’ means all day on Saturdays, all holidays specified in Section 135 and, to the extent provided in Section 12b, all days that by terms of Section 12b are required to be considered as holidays”].)

As such, the instant Motion was timely filed and served on April 20, 2026. (Cal. Rules of Court, rule 3.1700, subd. (b)(1).)

Thus, the Court addresses the Motion on the merits.

C. Item No. 4 – Deposition Costs

LA County moves to strike or tax deposition costs on the grounds Plaintiff fails to state whether costs for 33 deponents were actually incurred or reasonably necessary. (Motion, p. 6.) Further, Plaintiff states that 15 of the named deponents “were not called as a witness at trial” and “as such, their depositions offered little to no assistance in this action.” (Motion, p. 6.)

Here, the Court finds the face of the Costs Memo and accompanying attachment appear to include proper deposition costs; thus, the Court treats the verified Costs Memo as prima facie evidence that the costs therein were necessarily incurred by Plaintiff. (Anderson, supra, 72 Cal.App.4th at p. 131.) The burden is then on LA County, the opposing party, to show that an item is not properly charged. (Ibid.)

However, LA County does not provide any evidence demonstrating that the deposition costs were not properly charged. Further, LA County’s assertion that 15 deponents were not called as witnesses at trial and thus their depositions offered no assistance in this action is conclusory, unsupported, and speculative. (See Motion, p. 6.) “The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial. (See Culbertson v. R. D. Werner Co., Inc., supra, 190 Cal.App.3d at pp. 711–712 [nature of plaintiff’s case determines necessity of discovery].) The standard is whether the cost is ‘reasonably necessary to the conduct of the litigation.’ ” (See Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 57.) Given the nature of the instant action, as well as the explanations of the challenged depositions included in the Opposition (see Opp., pp. 5-9), the Court does not find that Plaintiff’s requested deposition costs are unreasonable.

Thus, the Motion is DENIED as to Item No. 4.

D. Item No. 5 – Service of Process Costs

LA County moves to strike or tax service of process costs on the grounds that there was no supporting documentation for these claimed costs, and “many of the people served appear to have no relation to the case at hand.” (Motion, p. 7.) Specifically, LA County refers to Benjamin Zaredini, Ariela Lemus, Esther Lim, Guadalupe Lopez, Rosa Gonzalez and Bob Olmstead. (Motion, p. 7.)

Here, the Court finds the face of the Costs Memo and accompanying attachment appear to include proper service of process costs; thus, the Court treats the verified Costs Memo as prima facie evidence that the costs therein were necessarily incurred by Plaintiff. (Anderson, supra, 72 Cal.App.4th at p. 131.) The burden is then on LA County, the opposing party, to show that an item is not properly charged. (Ibid.)

However, LA County does not provide any evidence demonstrating that the service of process costs were not properly charged. To the extent LA County argues the deponents listed in the Costs Memo and Attachment 5d were neither deposed nor called as witnesses at trial, the Court notes the Opposition states the persons listed were witnesses and, moreover, LA County’s assertion is legally unsupported. Further, the Court determines the need for a deposition “ ‘from the pretrial vantage point of a litigant.’ ” (See Nelson v. Anderson (11999) 72 Cal.App.4th 111, 132).

Thus, the Motion is DENIED as to Item No. 5.

E. Item No. 6 – Attachment Expenses

Here, Plaintiff concedes the \$13,602.32 of expenses listed in this section “was inadvertently misplaced” and “do not belong under this section.” (Opp., p. 10.)

While Plaintiff states these are reasonable costs incurred under Government Code section 12965 and requests the Court award the \$13,602.32 despite Plaintiff’s inadvertence, Plaintiff does not identify another category on the Costs Memo for these expenses to fall into.

Thus, the Motion is GRANTED as to Item
No. 6.

F. Item No. 8 – Witness Fees

Here, Defendant moves to strike or tax
\$3,487.50 in expert fees pursuant to Code of Civil Procedure section 1033.5's
mandate that a plaintiff may only recover for court-appointed expert witnesses
absent a statutory 998 offer. (Motion, pp. 7-8.)

However, Government Code section
12965, subdivision (b) states, in pertinent part: "In civil actions brought
under this section, the court, in its discretion, may award to the prevailing
party, including the department, reasonable attorney's fees and costs, including
expert witness fees...." (Emphasis added.)

Thus, the face of the Costs Memo seems
to include proper witness/expert witness costs; thus, the Court treats the
verified Costs Memo as prima facie evidence that the costs therein were
necessarily incurred by Plaintiff. (Anderson, supra, 72
Cal.App.4th at p. 131.) The burden is then on LA County, the opposing
party, to show that an item is not properly charged. (Ibid.)

LA County neither provides a
substantive argument or evidence in the Motion nor Reply to support striking or
taxing these costs.

Thus, the Motion is DENIED as to Item
No. 8.

G. Item No. 9 – Court Ordered Transcripts

Here, Defendant moves to strike or tax
the \$4,560.57 in court-ordered transcripts on the grounds that costs for transcripts
of court proceedings not ordered by the court are not recoverable under Code of
Civil Procedure section 1033.5(b)(5). (Motion, p. 8.)

However, the Court finds the Costs
Memo states that only court-ordered transcript costs are being requested. (See
Costs Memo, p. 3.)

Thus, the face of the Costs Memo seems to include court-ordered transcript costs; as such, the Court treats the verified Costs Memo as prima facie evidence that the costs therein were necessarily incurred by Plaintiff. (Anderson, supra, 72 Cal.App.4th at p. 131.) The burden is then on LA County, the opposing party, to show that an item is not properly charged. (Ibid.)

LA County neither provides a substantive argument or evidence in the Motion nor Reply to support striking or taxing these costs.

Moreover, Plaintiff provides evidence demonstrating these costs “were the transcripts that were provided to the court per the requirement/orders of the Court. Plaintiff did not include the costs for trial transcripts she incurred herself in this section. Thus, Defendant’s objection here is misplaced.” (Opp., p. 12, Exh. 3.)

Thus, the Motion is DENIED as to Item No. 9.

H. Item No. 11 – Court Reporter Fees

Here, LA County moves to strike or tax the \$18,163.89 in court reporter fees listed in Item 11 of the Costs Memo. (Motion, pp. 8-9, Costs Memo, p. 3.) LA County states Plaintiff failed to identify a statutory basis to recover these fees, and “it is unclear whether Plaintiff is seeking costs for pretrial and trial transcripts as part of the court reporter fees.” (Motion, pp. 8-9.) Further, LA County states “[i]n addition, Plaintiff and Defendant had agreed to split payments regarding the use of a court reporter at trial. To the extent that Plaintiff is attempting to seek reimbursement for the portion that Defendant has already paid, such cost should be stricken.” (Motion, p. 9.)

Under Code of Civil Procedure section 1033.5, subdivision (a)(11), allowable costs include “[c]ourt reporter fees as established by statute.”

“No abuse of discretion is shown in disallowance of expenditures for a daily transcript as costs [Citation], no

formal order for the same having been made. In a civil case, unless there is an express order by the court directing the preparation of a daily transcript of proceedings, chargeable to both parties, the general rule of Government Code section 69953 prevails: 'The fees for transcripts and copies ordered by the parties shall be paid by the party ordering them.' Since a daily transcript involves the use of more than one reporter, and sometimes certain inconvenience and distraction in their frequent changeovers or reliefs, such an arrangement when unilateral should have the approval of the court." (Moore v. City & County of San Francisco (1970) 5 Cal.App.3d 728, 739-740.)

Here, the Costs Memo does not set forth the statutory basis for the court reporter fees sought. Thus, the burden is on Plaintiff to demonstrate the charges are properly sought. (Anderson, supra, 72 Cal.App.4th at p. 131.)

In support of the Opposition, Plaintiff attaches "court reporter attendance fees, a 'real time' reporting charge, and daily trial transcripts, as reflected in the invoices" attached to the Opposition. (Opp., p. 13, Exh. 4.) Plaintiff states that she seeks only "her portion of these charges, and the invoices establish the amounts occurred." (Opp., p. 13, Exh. 4.) Further, Plaintiff states that "[t]here can be little dispute that daily trial transcripts were necessary during trial and during the evening time when preparing for the next day. Defense counsel knows this, because they ordered the daily trial transcripts as well. Accordingly, Plaintiff should recover the costs associated with those transcripts. Plaintiff should also recover the court reporter attendance fees. Plaintiff seeks only her portion of these charges, and the invoices establish the amounts incurred. Further, the 'real time' reporting charge was reasonable and necessary." (Opp., p. 13.)

The parties do not submit evidence of a court order directing the preparation of a daily transcript; as such, the Court finds Moore controls and Plaintiff is to pay her court reporter and transcript costs. The remainder of the costs requested for this item, such as attendance fee and real time reporting charge, appear permissible.

Thus, the Motion is GRANTED as to taxing Item No. 11's inclusion of the court reporter daily trial transcript charges and transcripts costs but is otherwise DENIED.

I. Item No. 13 – Models, Enlargement,
Photocopies

Here, LA County moves to strike or tax
the \$16,408.37 in costs for “Keystone – Photocopies/Trial Exhibit
Binders/Enlargements” included in the Costs Memo. (Motion, p. 9.)

Here, the Costs Memo does not set
forth sufficient details to ascertain the basis for the amount requested in
Item No. 13. Thus, the burden is on Plaintiff to demonstrate the charges are
properly sought. (Anderson, *supra*, 72 Cal.App.4th at p. 131.)

Plaintiff

provides the invoices for the items serving as the basis for Item No. 13, which
includes litigation copying, color laser, tabs, binders, card stock, flash
drive, tech time, trial support, exhibit board, delivery, and labor. (See Opp.,
Exh. 5.) Further, Plaintiff states these invoices only reflect “costs for her
portion of these damages, plus the costs for the creation of exhibit boards
Plaintiff intended to use at trial.” (Opp., p. 14.) Plaintiff also represents
that Plaintiff prepared approximately 500 exhibits for trial, and mitigated
costs by Plaintiff’s counsel performing “all their own courtroom digital
display of exhibits without the help of a courtroom technician.” (Opp., p. 15.)

The Court finds Plaintiff has
demonstrated a majority of the costs sought in Item No. 13 are proper. However,
given Plaintiff’s statements in the Opposition and Defendant’s contentions in
the Motion and Reply, the Court does not find Plaintiff has met her burden of
demonstrating that the “Tech Time – Data analyst” costs are proper or
reasonable.

Thus, the Motion is GRANTED as to
taxing Item No. 13’s inclusion of “Tech Time – Data analyst” costs but is otherwise
DENIED.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant

County of Los Angeles's Motion to Strike, or Alternatively, Tax Costs is
GRANTED IN PART AND DENIED IN
PART.

Moving party
is ordered to give notice.